functioning is reviewed?

At least during my tenure, nothing of this kind happened. One lone IG has the following top 'provisioners' for all matters, starting with the lieutenant governor, chief minister, minister for jails, health minister, chief secretary, home secretary, health secretary and director of health services (all from the Delhi State Government). Why did not any one of them ensure that Tihar had the minimum required basics for saving human life? And should the enquiry not take up the issue of their quality and capability of 'provisioning'? What is their role in problem solving? Aren't they in these positions for just that – and if they did not do so, then what are the penalties for them? Can they only be judges, but not judged?

Our administration groans under feudal ways. Its methods are a product of the feudal era. Have we an independent, constitutional agency that can look into its non-performance and affix due criminal liability? We do.

After the Rajan Pillai incident I got to talk to some officials in Tihar Jail. They told me that the CM and the minister for prisons came to the cell in which Rajan Pillai had been lodged. They brought the press along to ensure coverage of the fact that the CM had visited Tihar. However, they kept the press persons in such a place where they could not have access to the inner precincts. After the visit the CM raised some basic queries such as (not in the presence of the press):

(1) What time did the incident happen?
(2) What was done after that?
(3) When did the doctor/s arrive?
(4) Why couldn't the doctor/s arrive sooner?
(5) Why were there insufficient doctors?
(6) How is Tihar going to defend itself in this matter?

After that the CM gave a short press briefing and left. The minister for prisons, who was well aware of the shortage of doctors, when asked by the CM as to why the vacancies had not been filled, looked the other way. I am told that the home secretary, whose direct responsibility it is to supervise the work, had not visited the jail till then (up to 10 July 1995).

I strongly feel that, in all fairness, the enquiry needs to go beyond Tihar as well. Within Tihar, it should find out the quality of response of jail officials. Outside Tihar, it should ascertain whether the 'provisioners' did what they were supposed to do and then fix responsibility for non-performance on specific individuals. The enquiry should be held by a group of independent eminent citizens and not by a subordinate of the Delhi Administration.

Deaths of this kind will reoccur (which may not hit the headlines), the reason being that four independent Central jails, situated within one huge complex, are without proper round-the-clock medical facilities. The minimum they should get without delay is at least four qualified doctors available within the premises all the 24 hours.

Along with doctors, Tihar Jail (and all others) need to be provided with life-saving devices and medicines and also with adequately equipped hospitals. What could be worse than to say that while tuberculosis cases are high in Tihar it does not even have a TB specialist!

The enquiry should go into 'non-performance' of 'provisioners' – and who will allow themselves to be judged? This is not possible in feudal bodies with 'democratic [*sic*] gowns'!